

Laurentian University administration violated academic freedom



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(Ottawa – November 21, 2019) The Laurentian University Faculty Association ([LUFA](#)) has won an important legal battle in asserting the right to academic freedom across the country.

In December 2015, Dr. Michael Persinger was abruptly removed from teaching a psychology course after the administration received a student complaint. An arbitrator concluded that the administration violated the late professor's rights.

"It was improper and contrary to the Collective Agreement for the University to have removed Dr. Persinger from teaching (...) and to have issued the related email (...) to students in that course and in doing so to have failed to consider Dr. Persinger's academic freedom," writes arbitrator Kevin Burkett in a consent award rendered on November 6.

The decision also binds the administration to follow a proper consultative process going forward and prior to the removal of a professor from the classroom, including assessing the responsibilities and duties of academics, and their right to a full and proper investigation. The University has also agreed to "not publicly invite complaints against faculty members, and (...) never again utilize a stand alone telephone number for complaints".

"This is an important and precedent-setting award for academic staff across the country," said CAUT Executive Director David Robinson. "Academic freedom is a necessary condition for the free pursuit of knowledge and understanding."

LUFA president Fabrice Colin added that the Association is "Pleased with the decision because it sends a strong signal to our members, but it is a bittersweet victory because Dr. Persinger is no longer with us. We are happy that the University has agreed to award a yearly scholarship in his name to celebrate Dr. Persinger's internationally recognized contributions to neurosciences and the field of psychology. A staunch defender of academic freedom, Dr. Persinger also received prestigious awards for his teaching and research accomplishments."

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